

PROPOSED
SENATE AMENDMENTS TO H.B. 2311
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 18, Arizona Revised Statutes, is amended by adding
3 chapter 8, to read:

4 CHAPTER 8

5 ARTIFICIAL INTELLIGENCE

6 ARTICLE 1. GENERAL PROVISIONS

7 18-801. Definitions

8 IN THIS CHAPTER, UNLESS THE TEXT OTHERWISE REQUIRES:

9 1. "ACCOUNT HOLDER" MEANS AN INDIVIDUAL WHO HAS, OR OPENS, AN
10 ACCOUNT OR PROFILE TO USE A CONVERSATIONAL [A+] [TECHNOLOGY] SERVICE.

11 2. "CONVERSATIONAL [A+] [TECHNOLOGY] SERVICE":

12 (a) MEANS AN ARTIFICIAL INTELLIGENCE [OR OTHER] SOFTWARE
13 APPLICATION~~[, WEB INTERFACE OR COMPUTER PROGRAM]~~ THAT IS ACCESSIBLE TO THE
14 GENERAL PUBLIC AND ~~[THAT PRIMARILY]~~ SIMULATES HUMAN CONVERSATION AND
15 INTERACTION THROUGH TEXTUAL, VISUAL OR AURAL COMMUNICATIONS.

16 ~~[(b) DOES NOT INCLUDE AN APPLICATION, WEB INTERFACE OR COMPUTER~~
17 ~~PROGRAM THAT MEETS ANY OF THE FOLLOWING:~~

18 ~~(i) IS PRIMARILY DESIGNED AND MARKETED FOR USE BY DEVELOPERS OR~~
19 ~~RESEARCHERS;~~

20 ~~(ii) IS A FEATURE WITHIN ANOTHER SOFTWARE APPLICATION, WEB~~
21 ~~INTERFACE OR COMPUTER PROGRAM THAT IS NOT A CONVERSATIONAL AI SERVICE;~~

22 ~~(iii) IS DESIGNED TO PROVIDE OUTPUTS RELATING TO A NARROW AND~~
23 ~~DISCRETE TOPIC;~~

24 ~~(iv) IS PRIMARILY DESIGNED AND MARKETED FOR COMMERCIAL USE BY~~
25 ~~BUSINESS ENTITIES;~~

26 ~~(v) FUNCTIONS AS A SPEAKER AND VOICE COMMAND INTERFACE OR~~
27 ~~VOICE-ACTIVATED VIRTUAL ASSISTANT FOR A CONSUMER ELECTRONIC DEVICE;~~

28 ~~(vi) IS USED BY A BUSINESS ENTITY SOLELY FOR INTERNAL PURPOSES;~~

1 ~~(vii) IS USED BY A BUSINESS ENTITY SOLELY FOR CUSTOMER SERVICE OR~~
2 ~~TO STRICTLY PROVIDE USERS WITH INFORMATION ABOUT AVAILABLE COMMERCIAL~~
3 ~~SERVICES OR PRODUCTS PROVIDED BY THE BUSINESS ENTITY, CUSTOMER SERVICE~~
4 ~~ACCOUNT INFORMATION OR OTHER INFORMATION STRICTLY RELATED TO THE BUSINESS~~
5 ~~ENTITY'S CUSTOMER SERVICE.~~

6 ~~(viii) IS USED SOLELY TO PROVIDE COMMERCE-RELATED OR TRANSACTIONAL~~
7 ~~ASSISTANCE, INCLUDING PRODUCT OR SERVICE RECOMMENDATIONS, SHOPPING,~~
8 ~~ORDERING, PAYMENTS, DELIVERY, RETURNS OR CUSTOMER SUPPORT.]~~

9 3. "INDIVIDUAL" MEANS A NATURAL PERSON.

10 4. "MINOR" MEANS AN INDIVIDUAL UNDER CIRCUMSTANCES IN WHICH AN
11 OPERATOR HAS ACTUAL KNOWLEDGE OR REASONABLE CERTAINTY THAT THE INDIVIDUAL
12 IS UNDER EIGHTEEN YEARS OF AGE.

13 5. "MINOR ACCOUNT HOLDER" MEANS AN ACCOUNT HOLDER WHO IS A MINOR.

14 6. "OPERATOR":

15 (a) MEANS A PERSON THAT MAKES AVAILABLE A CONVERSATIONAL [A+] ~~[A+]~~
16 ~~[TECHNOLOGY]~~ SERVICE TO THE PUBLIC.

17 (b) DOES NOT INCLUDE A MOBILE APPLICATION STORE OR SEARCH ENGINE
18 SOLELY BECAUSE THE APPLICATION OR ENGINE PROVIDES ACCESS TO A
19 CONVERSATIONAL [A+] ~~[A+]~~ ~~[TECHNOLOGY]~~ SERVICE.

20 7. "PERSON" MEANS A NATURAL PERSON OR LEGAL ENTITY.

21 8. "SEXUAL CONDUCT" HAS THE SAME MEANING PRESCRIBED IN SECTION
22 13-3551.

23 9. "VISUAL DEPICTION" HAS THE SAME MEANING PRESCRIBED IN SECTION
24 13-3551.

25 18-802. Artificial intelligence; consumer notices and
26 disclosures; prohibited uses of artificial
27 intelligence service; safety and privacy tools;
28 civil penalty; enforcement by attorney general

29 A. EACH OPERATOR SHALL CLEARLY AND CONSPICUOUSLY DISCLOSE TO [A
30 ~~MINOR~~] ~~[AN]~~ ACCOUNT HOLDER IN EITHER OF THE FOLLOWING WAYS THAT THE
31 ~~[MINOR]~~ ~~[ACCOUNT HOLDER]~~ IS INTERACTING WITH A CONVERSATIONAL [A+] ~~[A+]~~
32 ~~[TECHNOLOGY]~~ SERVICE:

33 1. AS A PERSISTENT VISIBLE DISCLAIMER.

34 2. AT THE BEGINNING OF EACH SESSION AND APPEARING AT LEAST EVERY
35 THREE HOURS IN A CONTINUOUS CONVERSATIONAL [A+] ~~[A+]~~ ~~[TECHNOLOGY]~~ SERVICE
36 INTERACTION.

37 B. ~~[IF AN OPERATOR KNOWS THAT AN ACCOUNT HOLDER IS A MINOR,]~~ THE
38 OPERATOR MAY NOT PROVIDE THE USER WITH POINTS OR SIMILAR REWARDS AT
39 UNPREDICTABLE INTERVALS WITH THE INTENT TO ENCOURAGE INCREASED ENGAGEMENT
40 WITH THE CONVERSATIONAL [A+] ~~[A+]~~ ~~[TECHNOLOGY]~~ SERVICE.

41 C. EACH OPERATOR SHALL INSTITUTE REASONABLE MEASURES TO PREVENT THE
42 CONVERSATIONAL [A+] ~~[A+]~~ ~~[TECHNOLOGY]~~ SERVICE FROM DOING ANY OF THE FOLLOWING
43 FOR MINOR ACCOUNT HOLDERS:

44 1. PRODUCING VISUAL MATERIAL OF SEXUAL CONDUCT.

45 2. GENERATING DIRECT STATEMENTS THAT THE ACCOUNT HOLDER SHOULD
46 ENGAGE IN SEXUAL CONDUCT.

1 3. GENERATING STATEMENTS THAT SEXUALLY OBJECTIFY THE ACCOUNT
2 HOLDER.

3 D. FOR ~~[MINOR]~~ ACCOUNT HOLDERS, THE OPERATOR SHALL INSTITUTE
4 REASONABLE MEASURES TO PREVENT THE CONVERSATIONAL ~~[AI]~~ [TECHNOLOGY]
5 SERVICE FROM GENERATING STATEMENTS THAT WOULD LEAD A REASONABLE PERSON TO
6 BELIEVE THAT THE PERSON IS INTERACTING WITH A HUMAN, INCLUDING ANY OF THE
7 FOLLOWING:

8 1. EXPLICIT CLAIMS THAT THE CONVERSATIONAL ~~[AI]~~ [TECHNOLOGY]
9 SERVICE IS SENTIENT OR HUMAN.

10 2. STATEMENTS THAT SIMULATE EMOTIONAL DEPENDENCE.

11 3. [FOR MINOR ACCOUNT HOLDERS,] STATEMENTS THAT SIMULATE ROMANTIC
12 OR SEXUAL INNUENDOS.

13 4. [FOR MINOR ACCOUNT HOLDERS,] ROLE-PLAYING OF ADULT-MINOR
14 ROMANTIC RELATIONSHIPS.

15 E. IF A REASONABLE PERSON WOULD BE MISLED TO BELIEVE THAT THE
16 PERSON IS INTERACTING WITH A HUMAN, AN OPERATOR SHALL CLEARLY AND
17 CONSPICUOUSLY DISCLOSE THAT THE CONVERSATIONAL ~~[AI]~~ [TECHNOLOGY] SERVICE
18 IS ~~[ARTIFICIAL INTELLIGENCE]~~ [NOT A HUMAN OR SENTIENT].

19 F. EACH OPERATOR SHALL OFFER TOOLS FOR MINOR ACCOUNT HOLDERS AND,
20 IF THE ACCOUNT HOLDER IS UNDER THIRTEEN YEARS OF AGE, THE ACCOUNT HOLDER'S
21 PARENT OR GUARDIAN, TO MANAGE THE ACCOUNT HOLDER'S PRIVACY AND ACCOUNT
22 SETTINGS. AN OPERATOR SHALL ALSO OFFER RELATED TOOLS TO THE PARENT OR
23 GUARDIAN OF A MINOR ACCOUNT HOLDER WHO IS THIRTEEN YEARS OF AGE OR ABOVE,
24 AS APPROPRIATE BASED ON RELEVANT RISKS.

25 G. EACH OPERATOR SHALL ADOPT A PROTOCOL FOR THE CONVERSATIONAL ~~[AI]~~
26 [TECHNOLOGY] SERVICE TO RESPOND TO A USER PROMPT REGARDING SUICIDAL
27 IDEATION OR SELF-HARM, INCLUDING MAKING REASONABLE EFFORTS TO PROVIDE A
28 RESPONSE TO THE USER THAT REFERS THE USER TO CRISIS SERVICE PROVIDERS SUCH
29 AS A SUICIDE HOTLINE, CRISIS TEXT LINE OR OTHER APPROPRIATE CRISIS
30 SERVICE.

31 H. AN OPERATOR SHALL NOT KNOWINGLY AND INTENTIONALLY CAUSE OR
32 PROGRAM A CONVERSATIONAL ~~[AI]~~ [TECHNOLOGY] SERVICE TO MAKE ANY
33 REPRESENTATION OR STATEMENT THAT EXPLICITLY INDICATES THAT THE
34 CONVERSATIONAL ~~[AI]~~ [TECHNOLOGY] SERVICE IS DESIGNED TO PROVIDE
35 PROFESSIONAL MENTAL OR BEHAVIORAL HEALTH CARE.

36 I. AN OPERATOR THAT VIOLATES THIS CHAPTER IS SUBJECT TO AN
37 INJUNCTION AND IS LIABLE FOR THE GREATER OF EITHER:

38 1. ACTUAL DAMAGES.

39 2. CIVIL PENALTIES OF \$1,000 ~~[PER]~~ [FOR THE FIRST VIOLATION AND
40 \$20,000 FOR EACH SUBSEQUENT] VIOLATION~~[, NOT TO EXCEED \$500,000 PER~~
41 ~~OPERATOR]~~.

42 J. A VIOLATION OF THIS SECTION IS PUNISHABLE BY A CIVIL PENALTY, TO
43 BE SOUGHT BY THE ATTORNEY GENERAL ONLY. THIS SECTION DOES NOT CREATE A
44 PRIVATE RIGHT OF ACTION TO ENFORCE THIS SECTION OR TO SUPPORT A PRIVATE
45 RIGHT OF ACTION UNDER ANY OTHER LAW.

46 K. THIS SECTION DOES NOT CREATE LIABILITY FOR THE DEVELOPER OF ~~[AN~~
47 ~~ARTIFICIAL INTELLIGENCE]~~ [A CONVERSATIONAL TECHNOLOGY] MODEL FOR ANY

1 VIOLATION OF THIS SECTION BY A CONVERSATIONAL ~~[AT]~~ [TECHNOLOGY] SERVICE
2 THAT IS MADE AVAILABLE TO THE PUBLIC BY A THIRD PARTY OPERATOR.

3 Sec. 2. Effective date

4 Title 18, chapter 8, Arizona Revised Statutes, as added by this act,
5 is effective from and after September 30, 2027.

6 Enroll and engross to conform

7 Amend title to conform

DENISE "MITZI" EPSTEIN

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